Tangipahoa Parish Recording Page

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First MORTGAGOR
EDWARDS, DANIEL HARDY SR

First MORTGAGEE
BIG 4 INVESTMENTS LLC

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MULTIPLE INDEBTEDNESS MORTGAGE

Mortgagor:	**DANIEL HARDY EDWARDS, SR. and BLAIR DOWNING EDWARDS** **18016 Highland Trace** **Independence, LA 70443**	Mortgagee:	**BIG 4 INVESTMENTS, L.L.C.** **63399 Highway 51** **Roseland, LA 70456**

MULTIPLE INDEBTEDNESS MORTGAGE

UNITED STATES OF AMERICA

STATE OF LOUISIANA

PARISH OF TANGIPAHOA

BY: DANIEL HARDY EDWARDS, SR. and
BLAIR DOWNING EDWARDS
MORTGAGOR(S)

IN FAVOR OF:

BIG 4 INVESTMENTS, L.L.C.
MORTGAGEE

18-12-143 SHS/PS

BE IT KNOWN, that on this 26th day of June, 2012.

BEFORE ME, the undersigned Notary Public, duly commissioned and qualified in and for the State and Parish aforesaid, and in the presence of the witnesses hereinafter named and undersigned,

PERSONALLY CAME AND APPEARED:

DANIEL HARDY EDWARDS, SR., a person of the full age of majority, having been married two times, first to Michelle Blanchard, from whom he is judicially divorced, second to Blair Downing Edwards, with whom he is living and residing; **and BLAIR DOWNING EDWARDS,** a person of the full age of majority, having been married three times, first to David W. Smith, from whom she is judicially divorced, second to Robert R. Byars, from whom she is judicially divorced, third to Daniel Hardy Edwards, Sr., with whom she is living and residing, residents of and domiciled in the Parish of Tangipahoa, State of Louisiana, whose mailing address is 18016 Highland Trace, Independence, LA 70443; (the "Mortgagor"),

who declared unto me, Notary, that, the Mortgagor has agreed to provide security for any present or future obligations of the Mortgagor to **BIG 4 INVESTMENTS, L.L.C.**, 63399 Highway 51, Roseland, LA 70456; (the "Mortgagee"),

NOW, THEREFORE, in order to secure the prompt and punctual payment and satisfaction of any and all obligations, liabilities, or indebtedness of the Mortgagor to the Mortgagee, whether now existing or hereafter arising, due or to become due, up to the maximum amount of **$50,000,000.00** outstanding at any time, from time to time (the "Maximum Amount"), including without limitation and individually, collectively and interchangeably any and all present and future advances, loans and extensions of credit obtained or to be obtained by the Mortgagor from the Mortgagee from time to time, one or more times, and any and all promissory notes, checks, overdrafts, letter-of-credit agreements, endorsements and continuing guaranties, and other extensions of credit including, without limitation, the Mortgagor's promissory note dated **June 26, 2012** in the principal amount of **$305,000.00** payable to the order of the Mortgagee and any and all amendments thereto, and/or renewals, extensions and refinancings thereof as well as any and all other obligations that the Mortgagor may now or in the future owe to or incur in favor of the Mortgagee, whether by way of assignment, purchase of a participation interest or otherwise, and whether absolute or contingent, liquidated or unliquidated, owed individually or jointly, severally or solidarily with others, as a principal obligor or as a surety, of every nature and description, in principal, interest and other fees and charges together with all attorney's fees, premiums of insurance, taxes, assessments, municipal charges, expenses and costs, and the satisfaction of any sum secured by this Mortgage, (hereafter the "Secured Obligations"), the Mortgagor does, by these presents, specially mortgage, affect and hypothecate unto and in favor of the Mortgagee and any future holder or holders of the Secured Obligations, the following described property (the "Property"), to-wit:

"PROPERTY DESCRIPTION"

A certain piece or parcel of land situated in Section 17, Township 5 South, Range 8 East, Parish of Tangipahoa, State of Louisiana, and being more particularly described as follows, to-wit:

LOTS FIFTEEN (15) and SIXTEEN (16) of HIGHLAND ACRES SUBDIVISION, according to the official survey by Richard Dading, Registered Land Surveyor, dated September 18, 1991 and recorded at COB 860, Page 486 of the official records of the Parish of Tangipahoa, State of Louisiana.

Municipal address is 18016 Highland Trace, Independence, LA 70443.

Said Property to remain so specially mortgaged, affected and hypothecated unto and in favor of the Mortgagee and any future holder or holders of the Secured Obligations until the full and final payment of the Secured Obligations, the Mortgagor being hereby obligated not to sell, alienate, deteriorate or otherwise encumber the Property to the prejudice of this Act, and not to permit or suffer the same to be so sold, alienated, deteriorated or encumbered.

The Mortgagor does furthermore by these presents hereby confess judgment in favor of the Mortgagee for the full amount of the Secured Obligations in principal, interest and attorneys' fees and for all other costs and any sums that the Mortgagee may advance during the life of this Mortgage for the payment of premiums of insurance, payment of taxes and charges, making of repairs, or for the protection and preservation of the security of this mortgage as authorized elsewhere in this act, and expressly waives (a) the benefit of appraisement, as provided in Articles 2332, 2336, 2723, 2724, Louisiana Code of Civil Procedure, and all other laws conferring the same; (b) the demand and three days delay accorded by Articles 2639 and 2721, Louisiana Code of Civil Procedure; (c) the notice of seizure required by Articles 2293 and 2721 of the Louisiana Code of Civil Procedure; (d) the three days delay provided by Articles 2331 and 2722 of the Louisiana Code of Civil Procedure; and (e) the benefit of the other provisions of Articles 2331, 2722 and 2723, Louisiana Code of Civil Procedure, and any other Articles not specifically mentioned above which would prevent the immediate seizure and sale of the Property.

ARTICLE 1

MORTGAGOR'S COVENANTS

The Mortgagor covenants and agrees to the faithful fulfillment of the following stipulations in favor of the Mortgagee, to-wit:

1.01. *Insurance.* To keep all of the Property constantly insured against all risks (including flood and including war risks, if available) or damage to, or loss of, the property, in amounts equal to the full insurable value of the buildings and improvements thereon and in compliance with any Co-Insurance clause in the policy or policies but in no event less than the principal amount of the Secured Obligations, in form and issued by companies acceptable to the Mortgagee, under policies payable, in case of loss or damage irrespective of cause, to the Mortgagee, as its interest may appear, such rights to be evidenced by standard noncontributory mortgagee clauses; to deliver evidence of such policies to the Mortgagee, with evidence satisfactory to the Mortgagee of the payment of the premiums thereon at the time of the execution of this mortgage.

The insurance policies required by this Mortgage shall provide that any loss thereunder payable to the Mortgagee and the Mortgagor, as their respective interests may appear, shall be payable notwithstanding any act or negligence of the Mortgagor, owner or of any lessee or other occupant of any portion to the Property, which would otherwise result in a forfeiture of such insurance, and that in no event shall such policy be canceled even for non-payment of premium or the coverage thereunder reduced in any manner without at least thirty (30) days' prior written notice to the Mortgagee.

In the event the Mortgagor should, for any reason whatsoever, fail to keep all of the Property so insured or to keep said policies so payable to the Mortgagee, as aforesaid, or fail to deliver to the Mortgagee, as aforesaid, the evidence of such policies of insurance, or if the Mortgagor obtains such insurance, but for any reason it is canceled at any time during the term hereof, and the Mortgagor fails to obtain a renewal policy immediately and furnish the Mortgagee evidence thereof, then the Mortgagee, if it so elects, may itself have such insurance effected in such amounts and in such companies as it may deem proper and may pay the premiums therefor, and the costs of any premiums so paid, as provided herein, shall be secured by this Mortgage, and the Mortgagor covenants and agrees that, on demand therefor by the Mortgagee, the Mortgagor shall repay the amount so paid by the Mortgagee as premiums, together with interest thereon at the rate of **8.00** percent per annum from date of such payment until said amount is repaid.

The Mortgagee shall not be responsible for the solvency of any company issuing any insurance policy, whether or not selected or approved by it, or for the collection of any amount due under such policy, and shall be responsible and accountable only for such money as may be actually received by it. Nothing herein contained shall be construed as making the payment of insurance premiums obligatory upon the Mortgagee or as making the Mortgagee liable in any way for any loss, damage or injury resulting from the failure to insure the property.

The Mortgagor shall promptly notify the Mortgagee of any loss. Should the Mortgagee, by reason of any such insurance, receive any sum of sums of money for any damage to or loss of all or any portion of the Property, then, at the option of the Mortgagee, and in such manner as the Mortgagee may determine, such amount may be (a) retained and applied by the Mortgagee toward the payment of the debt secured hereby, applying the same first to the payment of accrued interest, if any, and then to the payment of principal, or (b) paid over, either wholly or in part, and under such conditions as the Mortgagee may determine, to enable the Mortgagor to repair or restore the Property, or for any other purpose or object satisfactory to the Mortgagee, all without prejudice to, and without affecting the lien of, this Mortgage on the Property.

1.02. *Taxes.* To pay and discharge promptly when due, all taxes, local and special assessments, governmental and utility charges ("taxes and charges") of every description which shall from time to time be imposed, assessed or levied upon the Property, or any part thereof, so that the priority of these presents, as herein stipulated for, shall at all times be maintained and preserved, and to furnish to the Mortgagee evidence of the payment of such taxes and charges.

In the event the Mortgagor should, for any reason, fail to pay and discharge promptly any such taxes and charges when due, then the Mortgagee shall be authorized to pay the same, with full subrogation to all rights of all authorities imposing such taxes and charges by reason of such payment, and the amounts so paid, together with interest thereon, as provided herein, shall be secured by this Mortgage and the Mortgagor covenants and agrees that on demand therefor by the Mortgagee, the Mortgagor will repay the amounts so paid by the Mortgagee in payment of such taxes and charges, together with interest thereon at the rate of **8.00** percent per annum from date of such payment until said amount is repaid. Nothing herein contained shall be construed, however, as making the payment of such taxes and charges obligatory upon the Mortgagee or as making the Mortgagee liable for any loss, damage or injury resulting from the failure to pay said taxes and charges.

1.03. *Maintenance and Repairs.* To maintain, preserve and keep the Property and each and every part and parcel thereof, at all times in thorough repair and good working order and condition, and from time to time make all needful repairs, renewals, additions, betterments and improvements thereon and thereto ("repairs") so that the security of this Mortgage shall at no time become impaired, provided, however, that the Mortgagor shall make no repairs to the Property without previously obtaining the written consent of the Mortgagee. Upon any failure to maintain or keep the Property in repair, the Mortgagee, at its option, may cause reasonable repairs to be performed at the cost of the Mortgagor. The amounts so paid together with interest thereon, as provided herein, shall be secured by this Mortgage and the Mortgagor covenants and agrees that, on demand therefor by the Mortgagee, the Mortgagor will repay the amount so paid by the Mortgagee for said repairs, together with interest thereon at the rate of **8.00** % per annum from date of such payment until said amount is repaid.

1.04. *Liens and Encumbrances.* To pay when due all obligations, lawful claims and demands of any person which, if unpaid, might result in or permit the creation of a lien or encumbrance on the Property, or any part thereof, whether such lien would be senior or subordinate hereto, including, without limiting the generality of the foregoing, all claims of mechanics, materialmen, laborers and others for work or labor performed, or materials or supplies furnished in connection with any work or demolition, alteration, improvement of or construction upon the Property, or any part thereof, and any mortgage, lien, privilege or encumbrance on the Property, or any part thereof, and, in general, to do or cause to be done everything necessary so that the priority of this Mortgage shall be fully preserved, without expense to the Mortgagee.

In the event that the Mortgagor should, for any reason, fail to pay and discharge any liens or encumbrances on the Property or any part thereof promptly when due, then the Mortgagee shall be authorized to pay the same, with full subrogation to all rights of the holder of such mortgages, liens or encumbrances by reason of such payment, and the amounts so paid, together with interest thereon, as provided herein, shall be secured by this Mortgage and the Mortgagor covenants and agrees that on demand therefor by the Mortgagee, the Mortgagor will repay the amounts so paid by the Mortgagee in payment of such mortgages, liens and encumbrances, together with interest thereon at the rate of **8.00** % per annum from date of such payment until said amount is repaid. Nothing herein contained shall be construed, however, as making the payment of such mortgages, liens and encumbrances obligatory upon the Mortgagee or as making the Mortgagee liable for any loss, damage or injury resulting from the failure to pay said mortgages, liens and encumbrances.

1.05. *Compliance with Laws.* To comply with all laws, ordinances, regulations, covenants, conditions and restrictions affecting the Property, or any part thereof, or the operation thereof, and to pay all fees or charges of any kind in connection therewith.

1.06. *Sale or Mortgage of Property.* Not to sell, exchange, lease, convey, transfer, mortgage or further encumber (even by Bond for Deed contract) the Property or any interest therein, or agree to do any of the above. This prohibition shall apply to, but not be limited to: (a) the transfer of all or any portion of the title to the Property by devise, descent or operation of law upon the death of the Mortgagor; (b) the sale, conveyance, exchange, assignment, or other transfer or granting of a security interest in any general partnership interest of the Mortgagor, if a general partnership or a limited partnership, or (c) the sale, conveyance, exchange, assignment, or transfer or granting of a security interest in more than 25% of (i) the issued and outstanding stock of the Mortgagor if a corporation, or (ii) the limited partnership interest of the Mortgagor, if a limited partnership.

The Mortgagor hereby acknowledges that the foregoing covenant is provided to the Mortgagee in order to protect the Mortgagee's security, to keep the Property free from subordinate liens, and or to allow the Mortgagee to increase or decrease the interest rate on the Secured Obligations and to collect any assumption or transfer fee the Mortgagee may deem proper in the event of any transfer to which the Mortgagee may have consented, as herein provided.

1.07. *Access to Property.* Not to abandon the Property and to provide Mortgagee with access to and the right to inspect the Property at all reasonable times.

1.08. *Taxation of Note and/or Mortgage.* To pay any and all taxes imposed against the Mortgagee which may become due in the event of the passage after the date of this Mortgage or any law deducting from the value of land for the purposes of taxation any lien thereon, or changing in any way the laws now in force for the taxation of mortgages or debts secured by mortgages for federal, State of local purposes, or the manner of the collection of any such tax, so as to affect adversely the rights of the Mortgagee under this Mortgage, or in any manner seeking to require the payment of federal, State or local taxes by the Mortgagee because of its interest in the Secured Obligations and or this Mortgage.

1.09. *Validity and Priority of Lien.* To keep valid and unimpaired the lien hereby created or intended to be created and, to that end, to execute, at any future time and as often as may be deemed necessary, or demand of the Mortgagee, all such further instruments, assignments and acts of mortgage in due form and effect as may be deemed proper by the Mortgagee to the better carrying out of the true intent and meaning of these presents and especially, at the Mortgagor's own cost, to do all other things that may be required by the Mortgagee to make and keep valid the lien on the Property, and each and every parcel thereof, and to maintain the priority of the lien created hereby on the Property.

1.10. *Condemnation Award.* To promptly notify the Mortgagee of the commencement of any condemnation proceedings affecting the Property or any part thereof or for use and occupancy or for charge of grade of streets and hereby to irrevocably authorize the Mortgagee to appear in such proceedings and to participate with the Mortgagor in the determination of any condemnation awards, to collect and receive any condemnation awards from the authorities making the same, to give receipts and acquittances therefor and to hold the same as collateral for the Secured Obligations. Provided that the Mortgagor is not then in default under this Mortgage, the Mortgagor, with the consent of the Mortgagee, may use all or a part of such condemnation award to acquire replacement property equal to or greater in value than the property so condemned, but only to the extent that such property is necessary to the Mortgagor's business.

1.10. *Environmental Indemnity.* To indemnify, defend and hold the Mortgagee and its officers, directors, shareholders, employees, and agents (the "Indemnified Parties") harmless from and against any and all liens, damages, losses, liabilities, obligations, judgments, penalties, fees or disbursements (including, without limitation, attorney's and expert's fees) which may at any time be imposed upon, incurred by, or awarded against any of the Indemnified Parties arising directly or indirectly from the release, disposal, storage or handling of any hazardous materials on or under the Property, or the violation of any environmental laws, rules or regulations relating to or affecting the Property. The Mortgagor shall comply fully with all environmental laws, rules or regulations relating to or affecting the Property. The indemnity of this Section 1.11 shall survive the satisfaction of the Secured Obligations and the release of this Mortgage.

ARTICLE 2

EVENTS OF DEFAULT AND REMEDIES

2.01. *Events of Default.* If any one or more of the following events shall occur ("Events of Default"):

(a) If default be made in the payment when due (whether by the mere passage of time or acceleration as permitted herein or under any Secured Obligations) of any interest on or principal of any Secured Obligations, or any other sums due under any Secured Obligations;

(b) If default should be made in the due observance or performance of any covenant or agreement on the part of the Mortgagor contained herein;

(c) If the Mortgagor or any guarantor of the Mortgagor's obligations hereunder should die;

(d) If the Mortgagor or any guarantor of the Mortgagor's obligations hereunder shall generally not pay its debts as they become due, admit in writing in inability to pay its debts, have called a general meeting of creditors, or made a general assignment for the benefit of creditors;

(e) If the Mortgagor or any such guarantor shall commence any case, proceeding or other action seeking reorganization, arrangement, adjustment, liquidation, dissolution or composition of it or its debts under any law relating to bankruptcy, insolvency, reorganization or relief of debtors, or seeking appointment of a receiver, trustee, custodian or other similar official for it or for all or any substantial part of its property;

(f) If the Mortgagor or any such guarantor shall take any action to authorize any of the actions set forth above in subparagraphs (d) or (e) above;

(g) If any proceeding or other action against the Mortgagor or any guarantor of the Mortgagor's obligations hereunder shall be commenced seeking to have an order for relief entered against it as debtor, or seeking reorganization, arrangement, adjustment, liquidation, dissolution or composition of it or its debts under any law relating to bankruptcy, insolvency, reorganization or relief of debtors, or seeking appointment of a receiver, trustee, custodian or other similar official for it or for all or any substantial part of its property, and such case, proceeding or other action (i) results in the entry of an order for relief against it which is not fully stayed within seven business days after the entry thereof or (ii) remains undismissed for a period of 45 days;

(h) If final judgment for the payment of money shall be rendered against the Mortgagor and the Mortgagor shall not discharge the same or cause it to be discharged within 60 days from the entry thereof, or shall not appeal therefrom or from the order, decree or process upon which or pursuant to which said judgment was granted, passed, or entered, and secure a stay of execution pending such appeal;

(i) If the Property, or any part or parcel thereof, be seized in the execution of a writ of executory process, attachment, fieri facias or any other legal process, or an order for the sale of such Property, or any part or parcel thereof be issued in any judicial proceeding, and such writ of executory process, attachment, fieri facias or any other legal process or order for the sale of such Property, or any part of parcel thereof, so issued in any judicial proceeding be not released, revoked, stayed or set aside within 10 days from issuance thereof;

(j) If it shall be illegal for the Mortgagor to pay any taxes referred to in Article 1.08 hereof or if the payment of such taxes by the Mortgagor would result in the violation of the usury laws of the State in which the Property is located;

(k) If the Property, or any substantial part or parcel thereof, be condemned under power of eminent domain by any legally constituted authority; or

(l) If the Mortgagor should ever be required or permitted by reason of any present or future law of the United States, or any state, parish, municipality or other taxing authority, to deduct from the payments to be made upon the Secured Obligations, any amounts whatsoever as taxes, local assessments, forced contributions and/or governmental charges in the nature thereof; then and in each and every such case, all of the Secured Obligations may, at the option of the Mortgagee and without notice to the Mortgagor, be declared to be immediately due and payable, anything in this Mortgage or in said Secured Obligations to the contrary notwithstanding, and the Mortgagor does by these presents consent, agree and stipulate that, in the event of any such default, it shall be lawful for the Mortgagee, and the Mortgagor does hereby authorize the Mortgagee without making demand and without notice or putting in default, to cause all and singular the Property to be seized and sold under executory process without appraisement, appraisement being hereby expressly waived, as an entirety or in parcels, as the Mortgagee may determine, to the highest bidder for cash, or on such terms as may be accepted to the Mortgagee.

2.02. *Appointment of Keeper.* In the event the Property or any part thereof is seized as an incident to an action for the recognition or the enforcement of this Mortgage by executory process, ordinary process, sequestration, writ of fieri facias, or otherwise, the Mortgagor and the Mortgagee hereby agree that the Court issuing any such order shall, if petitioned for by the Mortgagee, direct the Sheriff to appoint as a keeper of the Property, the Mortgagee, or any agent designated by the Mortgagee or any person named by the Mortgagee at the time such seizure is affected. This designation is made pursuant to La. Rev. Stat. Ann. §§ 9:5136 to 9:5140.1, inclusive, as the same may be amended, and the Mortgagee shall be entitled to all the rights and benefits afforded thereunder including reasonable compensation.

2.03. *Attorney's Fees.* In the enforcement of this Mortgage by reason of an Event of Default under a Secured Obligation, the Mortgagor shall pay the Mortgagee's attorney's fees and other costs of collection as may be provided for under such Secured Obligation. In the absence of any clause in such Secured Obligation providing for attorney's fees, the Mortgagor agrees to pay the fees of the attorney who may be employed by the Mortgagee to recover the Secured Obligation or any part thereof, in principal or interest, to protect the interests of the holder or holders thereof, or otherwise to preserve or protect the security of this Mortgage, whether in bankruptcy proceedings or otherwise, and the fees of such attorney are hereby fixed at 20% on the amount due or sued for or claimed or sought to be protected, preserved or enforced.

2.04. *Security Agreement.* As to any personal (movable) property covered by this Mortgage, this Mortgage shall constitute a security agreement under the LAUCC and the Mortgagee shall have all the rights and remedies available to a secured party under the LAUCC.

ARTICLE 3

MISCELLANEOUS TERMS AND CONDITIONS

3.01. *Future Advances.* It is understood and agreed that this Mortgage may have been executed for the purpose of securing funds to be hereafter advanced for construction work, and in such event, the amount of such advances made hereafter shall be secured by this Mortgage with the preferences and priorities provided for by Louisiana Revised Statutes §§ 9:4801 et seq., as the same may be from time to time amended; provided, however, that nothing herein is to be construed as limiting the duration of the Mortgage or the purposes for which loans or advances may be made after completion of the construction referred to above.

3.02. *Maximum Amount.* This Mortgage is granted to secure the Secured Obligations of the Mortgagor, as herein stipulated, up to the Maximum Amount of **$50,000,000.00** as may be outstanding from time to time, at any time, regardless of whether previous advances, extensions of credit, or other Secured Obligations that may exceed the Maximum Amount have been reduced or paid.

3.03. *Continuing Priority.* It is hereby agreed and understood that this Mortgage shall be entitled to the continuing preference and priority provided by Louisiana Civil Code Ann. Article 3298, as it may be amended from time to time.

3.04. *Conclusive Presumption.* The Mortgagor and the Mortgagee agree that it shall be conclusively presumed that any obligation that the Mortgagor may now or hereafter owe to or incur in favor of the Mortgagee shall be a Secured Obligation secured by this Mortgage without any further provision to that effect.

3.05. *Partial Release.* The Mortgagee may, at any time, without notice to anyone, release any part of the Property from the effect of this Mortgage or grant an extension or deferment of time for the discharge of any obligation hereunder, or release any one or more of the parties bound therefor from any or all of his or their obligations thereunder without affecting the personal liability of any other party then bound for the payment of the full indebtedness due thereunder or hereunder, or for any other obligation thereunder or hereunder.

3.06. *Rules of Construction.* Whenever used herein, the singular number shall include the plural, the plural the singular, and the use of any gender shall be applicable to all genders. Where the Mortgagor herein is more than one person, the term "mortgagor" as used herein shall be deemed to be plural and to, refer to each or every such person as the context may indicate and all obligations of each and every one of such persons under the Secured Obligations and hereunder are, and shall be, joint and several and in solido.

3.07. *Successors in Interest.* It is expressly agreed that any and all stipulations, agreements and covenants by the Mortgagor in favor of the Mortgagee herein contained, and all rights, powers and privileges herein conferred on the Mortgagee by any of the provisions hereof shall inure to and be for the benefit of and may be exercised by the Mortgagee, the Mortgagee's heirs, administrators, executors, successors and assigns and by any future holder or holders of the Secured Obligations, and the word "Mortgagee," unless the context otherwise requires, shall also mean and include the heirs, administrators, executors, successors and assigns of said Mortgagee, as well as any future holder or holders of all or any part of the Secured Obligations. The word "Mortgagee" shall also be deemed to include any assignee of this Mortgage, whether or not, at the time the assignment is made, the Mortgagor incurred any Secured Obligations in favor of the Mortgagee or any Secured Obligations are actually outstanding. All covenants and agreements herein contained to be observed or performed by the Mortgagor shall be binding upon the Mortgagor and upon the Mortgagor's heirs, administrators, executors, successors and assigns, and any other person, firm or corporation acquiring title to any of the Property, by, through or under said the Mortgagor.

3.08. *Assignment of Leases.* The Mortgagor herein and hereby assigns unto the Mortgagee as security for the payment of the Secured Obligations all of the Mortgagor's right, title and interest in and to the rents, issues and profits accruing and to accrue and due and to become due and payable under and pursuant to all contracts of lease, rental and occupancy now in effect or hereafter entered into by the Mortgagor and covering any portion of the Property hereinabove described and herein and hereby mortgaged. Unless and until default is made by the Mortgagor in the payment of any of the Secured Obligations or in the performance or observance of any of the terms, provisions or conditions of this Mortgage, the Mortgagor shall have the right to collect and receive the rentals accruing under such leases, rental and occupancies, but not in advance, and to enforce the covenants of said leases.

In the event of any default by the Mortgagor in the payment of any installment of principal or interest on the Secured Obligations secured hereby or in the performance or observation of any of the terms, provisions and conditions of this Mortgage, or of the Secured Obligations secured hereby, the Mortgagee shall have and is hereby given the right to collect all the rents, issues and profits under or with respect to any and all leases, rentals and occupancies covering any portion or portions of the Property herein and hereby mortgaged, and to continue to so do until all obligations of the Mortgagor under this Mortgage and under the Secured Obligations secured hereby have been paid and discharged in full, and the Mortgagor hereby makes, constitutes and appoints the Mortgagee its attorney-in-fact, giving unto said attorney irrevocable power, either in its own name or in the name of the Mortgagor, to take all necessary steps, by proceedings in court or otherwise to notify any and all lessees of this assignment and to collect all rentals, revenues, issues and profits, to cause the said premises to be vacated and, when vacant, to relet such premises and to do all such things in such manner and on such terms as said Mortgagee may deem best. The Mortgagee shall additionally be entitled to the judicial appointment of a receiver of rents at any time after any such default.

The Mortgagor further agrees and stipulates that it will keep and will cause to be kept valid and unimpaired the assignment of rents and revenues hereinabove set forth and, to that end, shall execute at any future time or times, and as often as may be deemed necessary, or demand of the Mortgagee, all such further instruments and/or assignments in such form and effect as may be deemed proper by the Mortgagee to the better carrying out of the true intent and meaning of the assignments hereinabove set forth.

3.09. *Waiver of Homestead Exemption.* The said Mortgagor further declares in favor of the Mortgagee herein, and all future holders of the Secured Obligations, and as regards the Property, that he waives any and all homestead exemptions to which he is or may be entitled under the Constitution and laws of the State of Louisiana.

3.10. *Certificates.* By reference to the State and City (Parish) tax researches annexed hereto, it appears that all taxes due and exigible against the Property have been paid, up to and including the year **2012**.

By reference to the certificates of the (Clerk of Court and Ex-Officio) Register of Conveyances and Recorder of Mortgages in and for the Parish of **Tangipahoa**, which certificates are annexed hereto, it does not appear that the Property has been heretofore alienated by the Mortgagor or that it is subject to any encumbrance whatsoever except:

The parties to this act are aware of the fact that the Mortgage, Conveyance and Paving Ordinance Certificates herein referred to are open, being not yet dated or signed, and relieve and release me, Notary, from all responsibility and liability in connection therewith.

3.11. *Executory Process.* In the event of foreclosure of this Mortgage by executory process, the Mortgagee shall be entitled to prove by affidavit or verified petition the existence, amount, terms and maturity of any Secured Obligation in accordance with La. Rev. Stat. Ann. § 9:5551, without the production of any original instruments and without the paraphing or other identification of any Secured Obligation with this Mortgage.

3.12. *Release of Mortgage.* This Mortgage shall continue in effect until the Mortgagee delivers to the Mortgagor a written act of release directing the recorder of mortgages to cancel the Mortgage from his records. The Mortgagor shall not be entitled to such a release unless no Secured Obligation exists and neither the Mortgagor nor the Mortgagee is bound to the other or to a third person to permit a Secured Obligation to be incurred. The Mortgagor shall be responsible for the costs of canceling the Mortgage from the public records.

3.13. *Article Headings.* The article headings are inserted only for convenience and are in no way to be construed as a part of this Mortgage or as a limitation on the scope of the particular articles to which they refer.

And now comes **BIG 4 INVESTMENTS, L.L.C.**, the Mortgagee, who does hereby accept and approve this Mortgage on his behalf and on behalf of any future holder or holders of the Secured Obligations.

THUS DONE AND PASSED, in Hammond, Louisiana, on the day, month and year herein first above written, in the presence of the undersigned competent witnesses, who hereunto sign their names with the said appearers, and me, Notary, after reading of the whole.

WITNESSES:

PATRICIA SOAPE

DORIS G. ZERINGUE

MORTGAGOR(S):

DANIEL HARDY EDWARDS, SR.

BLAIR DOWNING EDWARDS

MORTGAGEE:

BIG 4 INVESTMENTS, L.L.C.

BY:
DAVID A. SMITH

SCOTT H. SLEDGE, NOTARY PUBLIC
LSBA #20376